

50-state guide for recovering deposits when landlord has no written agreement, with legal options — Action Checklist

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KNOW YOUR STATE LAW

- ☐ **Know Your State Law:** Search for your state plus security deposit statute online to find the specific landlord-tenant code that governs your deposit case, since every state has different rules and timelines.
- ☐ **Know Your State Law:** Locate your state's maximum deposit cap to determine if you paid more than the legal limit and may be owed the excess amount back immediately.
- ☐ **Know Your State Law:** Identify your state's mandatory deposit return deadline by finding the statute section on return timelines, which ranges from 14 to 60 days depending on where you live.
- ☐ **Know Your State Law:** Review penalty clauses in your state law to understand what automatic damages your landlord owes if they miss the return deadline, which is often double or triple the deposit.

UNDERSTAND YOUR RIGHTS

- ☐ **Understand Your Rights:** Accept that oral agreements and implied contracts create legally binding security deposit obligations regardless of missing paperwork, because the law protects you.
- ☐ **Understand Your Rights:** Recognize that your landlord-tenant relationship is established by law the moment you paid to move in, not by any written lease your landlord neglected to provide.
- ☐ **Understand Your Rights:** Know that three legal theories protect your claim without a written agreement: implied contract, unjust enrichment, and automatic statutory protection under state deposit law.
- ☐ **Understand Your Rights:** Remember your landlord cannot escape their legal obligations by pointing to the absence of paperwork they were responsible for creating in the first place.

BUILD YOUR CASE

- ☐ **Build Your Case:** Gather all documentation proving you paid a deposit including bank statements, receipts, text messages, Venmo payments, or emails with your landlord to establish your claim.
 - ☐ **Build Your Case:** Calculate the total amount your landlord owes by adding the original deposit plus any excess over your state cap plus the automatic penalty for missing the statutory deadline.
 - ☐ **Build Your Case:** Contact your local small claims court or housing authority to learn where and how to file a deposit recovery claim in your specific jurisdiction before taking action.
 - ☐ **Build Your Case:** Send your landlord a written demand letter citing your exact state statute and the specific return deadline, giving them one final chance to comply before you file.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.